

**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF SUFFOLK**

DIANE C. DESOUSA and  
THOMAS E. DESOUSA,

Plaintiffs,

-against-

RICHARD A. CALVAGNO II and  
PATRICK J KARCHER

Index Purchased on: \_\_\_\_\_

Index No:

**SUMMONS**

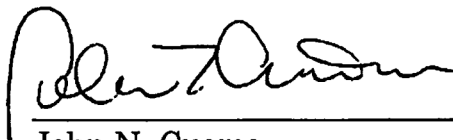
Venue is based upon the residence of all  
parties

**TO THE ABOVE-NAMED DEFENDANTS:**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on Plaintiffs' attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the annexed complaint.

Venue is proper in Suffolk County pursuant to N.Y. C.P.L.R. §503(c) as Plaintiffs and Defendant are residents of the County of Suffolk.

Dated: January 8, 2021  
Commack, New York

A handwritten signature in black ink, appearing to read "John N. Cuomo", is written over a horizontal line.

John N. Cuomo  
Attorney for Plaintiffs  
11 Fern Drive  
Commack, NY 11725  
631-403-0515

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF SUFFOLKDIANE C. DESOUSA and  
THOMAS E. DESOUSA,

Plaintiffs,

-against-

RICHARD A. CALVAGNO II and  
PATRICK J KARCHER

Index No:

**VERIFIED COMPLAINT**

Plaintiffs, Diane C. DeSousa and Thomas E. DeSousa, complaining of the defendants, Richard A. Calvagno II and Patrick J, Karcher allege as follows:

**THE PARTIES**

1. Plaintiffs, Diane C. DeSousa and Thomas E. DeSousa, ("Plaintiffs") are individuals and residents of the State of New York, County of Suffolk. Both Plaintiffs are senior citizens in their 70's.
2. At all times relevant herein, Plaintiffs were and are the fee owners and residents of a parcel of property together with a home and all structures and items thereon a/k/a 329 Grand Central Avenue, Amityville, NY 11701 (Suffolk County Tax Map ID 0101-014.00-01.00-019.000).
3. Upon information and belief, Defendants, Richard A. Calvagno II ("Calvagno") and Patrick J. Karcher ("Karcher") are individuals and residents of the State of New York, County of Suffolk.

4. Upon information and belief, at all times relevant herein, Plaintiffs were and are the fee owners and residents of a parcel of property, together with the home, all structures and items thereon, known as 320 Grand Central Avenue, Amityville, NY 11701 (Suffolk County Tax Map ID 0101-014.00-02.00-025.000).

5. The homes/real estate parcels of the parties are across the street on Grand Central Avenue in Amityville, NY.

6. Both parcels are located on a point of land on Long Island's south shore. Grand Central Avenue runs down the center of the point and terminates approximately 600 feet south of these locations. As a result, both parcels have street frontage as well as having frontage and dockage on the Great South Bay.

7. The neighborhood is residential, comprised mainly of single-family homes along quiet tree lined, one lane streets.

### **RELEVANT FACTS**

#### **a. Defendant's Car**

8. Upon information and belief Defendant Calvagno is the owner and/or operator of Dodge SRT Hellcat motor vehicle, bearing NY license plates "JHT-6413".

9. Upon information and belief Defendant's Dodge automobile has a modified exhaust system, which either fails to sufficiently muffle the automobiles sound when the engine is running or intentionally amplifies that noise and makes it excessive. In either case the Defendant's Dodge automobile is extremely loud when running and becomes increasing louder with increased engine RPM's or speed.



10. Defendant Calvagno's Dodge automobile is equipped with a remote starting device.

11. Upon information and belief, on many mornings between 6:30 and 7 am, Defendant would start and idle his Dodge automobile in the driveway and/or in the street on front of his home for 5, 10, 15 minutes or longer.

12. Upon information and belief, Defendant's operation of his Dodge automobile violates both NY State and Suffolk County Noise Codes and creates an unnecessary, unreasonable interference and intrusion upon the public in general, and upon his neighbors in particular.

13. Further exacerbating his actions when leaving the driveway, proceeding on the public street, the Defendant would speed away driving recklessly and loudly down the public street.

14. While idling, and driving the excessive noise level emitted by the Defendant's vehicle has been measured (from approximately 60 feet) and most times in excess of 75db.

15. For example, I noted and documented said actions on November 27, 2020 (75.2db); November 27, 2020 (74.1); December 3, 2020 (73.5); December 4, 2020 (79.2); December 4, 2020 (77.4); December 15, 2020 (75.0); December 15, 2020 (75.0) and January 5, 2021 (79.9).

16. Defendant's actions create excessive noise and vibration which interfere with the use and enjoyment of our home.

17. Defendant's actions create excessive noise and vibration which roust or deprive Plaintiffs from sleep.

18. Defendant's actions create excessive noise and vibration which the very anticipation of that noise and vibration interfere with our sleep and prevents us from getting sound sleep, in that we wake often during the night anticipating the noise and vibration. sleep.

19. Weather permitting, we are now unable to open our windows to enjoy fresh outdoor air. Because we are forced to keep our windows closed to try and limit the excessive noise and vibration, we are forced to run our air-condition which has increased our electric bills. Unfortunately, even with the windows closed, we can still hear the noise and feel the vibration.

20. Defendant's actions create excessive noise and vibration which are upsetting to both Plaintiffs, causing stomach upset, nausea and manifesting itself in other physical ways as well.

21. While Defendant's action is most disturbing in the morning, he does not limit his activities to mornings alone. He will idle, race and drive his car recklessly at any time of day. Plaintiffs have stop taking walks because of the danger posed by Defendant's reckless driving.

22. Defendants action create excessive noise, vibration and road danger which does decrease and diminish the value and worth of Plaintiffs' home in addition to creating stress which has manifested itself in sleeplessness and other stress related ailments.

**b. Defendants renting boat slips.**

23. The Defendants' home is situated in a residential low density zoned area.
24. Defendants have a boat dock behind their home, and upon information and belief, during the 2020 boating season the Defendants rent boat slips to others.
25. Renting boat slips to the general public is carrying on a commercial enterprise in a residential zone, and as such, creates excessive noise, congestion, street traffic and parking issues.
26. Upon information and belief, carrying on a commercial enterprise in a residential zone is a violation of local and county zoning codes.
27. Defendants actions create excessive noise, vibration and congestion which decreases and diminished the value and worth of Plaintiffs' home.

**c. Defendants renting back and side yards as a catering hall.**

28. In addition to having a boat dock, Defendants have a substantial back and side yard area.
29. Upon information and belief, the defendants have rented out, and continue to offer, their back and sides yard for catered parties and events for which they may also provide catering services.
30. Specifically, Defendants held events on Saturday, October 24, 2020 and on or about November 28-29, 2020.
31. These events are crowded, hosting more than 50 guests. These events are loud, noisy and run well into the early hours of the following morning.

32. These events have been held in violation of State and local safety rules, order and regulation. Guests were observed violating social distance directives and interacting without masks.

33. Renting their backyard, hosting catered events and providing catering to the general public is carrying on a commercial enterprise in a residential zone, and as such, creates excessive noise, congestion, street traffic, parking issues and generates an enormous amount of garbage and waste.

34. As the Defendants do not have sufficient facilities to properly handle, contain or store such waste/garbage, much of this trash is left uncovered, open, exposed and may draw insects and vermin to the neighbor. As shorefront properties are unusually susceptible to vermin, this is of a particular concern.

35. Upon information and belief, carrying on a commercial enterprise in a residential zone is a violation of local and county zoning codes and as previously noted currently a violation of executive orders/health and safety directives.

36. Holding events on such a scale and in such a reckless manner creates a danger to general public.

37. Defendants actions create excessive noise, vibration, congestion, generate waste, garbage and increases the chance of infestation of insects and vermin which decreases and diminished the value and worth of Plaintiffs' home.

**d. Defendants permit trash and debris all about their property.**

38. Defendants have accumulated and maintain substantial litter, uncovered trash and debris on their property.

39. In addition to being an eyesore, this trash may attract and harbor insects and vermin. As previously noted, this property is on the waterfront and as such is particularly susceptible to vermin infestation.

40. The conditions on the Defendants property is an eyesore and is ripe for insect/vermin infestation which would spread to surrounding properties including that of the Plaintiffs.

41. Defendants actions have created an eyesore and conditions which are ripe for insect/vermin infestation all of which decreases and diminished the value and worth of Plaintiffs' home.

**e. Plaintiffs requests Defendants to stop their activities.**

42. Plaintiff Thomas E. DeSousa approach Defendant Calvagno and requested that he stop idling/revving/racing his car and driving recklessly; he registered complaints concerning the catering activities, as well as boat slip rental. Defendant Calvagno refused to entertain any possibility of abating any such activities.

43. In fact, the Defendant then went on to exacerbate an already bad situation by idling and revving the car longer, seemingly going out of his way to make his presence known to annoy and harass the Plaintiffs more.

**FIRST CAUSE OF ACTION**

**Private Nuisance**

44. Plaintiffs repeat and reallege the allegations contained above in paragraphs "1"- "43" above as each were set forth here at length herein.

45. Defendants' actions above interfere with the Plaintiffs; use and enjoyments of property that they own.

46. Such interference is a result of the Defendants' actions as noted above, such actions are causing/creating excessive noise, vibrations, congestion, traffic, waste, insects and vermin.

47. Defendants' actions in creating such interference are intentional, negligent and/or reckless.

48. Defendants knew, or should have known that their actions are offensive, illegal and likely to cause harm and/or injury to others.

49. Defendants' actions are unreasonable in their nature as they violate State and Local rules, laws and regulations.

50. Defendants actions constitute a private nuisance.

51. Defendants have had actual notice of the nuisance and have had the opportunity to abate the nuisance but have failed to do so.

52. Defendants' conduct constitutes a private nuisance and has proximately caused, and will continue to cause, damages to Plaintiffs. Plaintiffs are entitled to injunctive relief requiring, *inter alia*, Defendants to abate the nuisance. Plaintiffs are also entitled to compensatory damages for the direct financial harm, in an amount to be determined at trial.

**SECOND CAUSE OF ACTION****Public Nuisance**

53. Plaintiffs repeat and reallege the allegations contained above in Paragraphs “1” – “52” as if set forth at length herein.

54. Defendants’ actions and conduct are causing/creating excessive noise, vibrations, congestion, traffic, waste, insects and vermin and impact Plaintiffs’ residence, other residences, and public spaces.

55. The Defendants’ actions are causing/creating excessive noise, vibrations, congestion, traffic, waste, insects and vermin that offend, interfere with, and cause damage to the public in their exercise of rights common to all, such as traveling through the area, using public streets and sidewalks and areas such as residing in their dwellings, attending neighborhood schools etc.

56. These impacts injure and endanger the property, health, safety, and comfort of a considerable number of persons.

57. Plaintiffs have experienced special harm from Defendants’ conduct or omissions that are different in kind from those experienced by the public at large.

58. Defendants’ actions constitute a public nuisance.

59. Defendants have actual notice of the public nuisance and have had a reasonable opportunity to abate the nuisance. Defendants’ conduct constitutes a public nuisance that has proximately caused, and will continue to cause, damages to Plaintiffs.

60. Plaintiffs are entitled to injunctive relief requiring, *inter alia*, Defendants to abate the nuisance. Plaintiffs are also entitled to compensatory damages for the direct financial harm, in an amount to be determined at trial.

### THIRD CAUSE OF ACTION

#### Nuisance Per Se

61. Plaintiffs repeat and reallege the allegations contained above in paragraphs "1"- "60" above as each were set forth here at length herein.

62. The Defendants' actions are in violation of state and local laws, regulations.

63. Such illegality makes the nuisance a nuisance *per se*.

64. Defendants' conduct constitutes nuisance *per se* and has proximately caused, and will continue to cause, damage to Plaintiffs.

65. Plaintiffs are entitled to injunctive relief requiring, *inter alia*, Defendants to abate the nuisance. Plaintiffs are also entitled to compensatory damages for the direct financial harm, in an amount to be determined at trial.

### FOURTH CAUSE OF ACTION

#### Intentional Infliction of Emotional Distress

66. Plaintiffs repeat and reallege the allegations contained above in paragraphs "1"- "65" above as each were set forth here at length herein.

67. Defendants' actions and conduct are causing/creating excessive noise, vibrations, congestion, traffic, waste, insects and vermin and impact Plaintiffs' residences inside and out, interfere with the Plaintiffs' sleep and comfort.



68. Defendant's conduct and actions are extreme and outrageous considering the level of the excessive noise, vibration, the time of day and the character of the neighborhood.

69. Defendants' were made aware of their actions their actions were having a significant negative impact upon the home, health and well-being of the Plaintiffs' and rather than abate their actions, they have increased them and have done so with the intent of causing severe emotional distress to the Plaintiffs.

70. The Defendants' conduct and actions have had the intended impact upon the Plaintiffs and have caused them to suffer severe emotional distress.

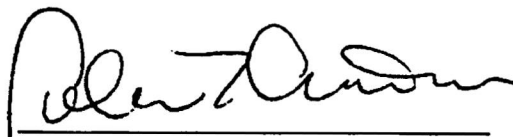
71. Plaintiffs are entitled to injunctive relief requiring, *inter alia*, Defendants to abate the nuisance. Plaintiffs are also entitled to compensatory damages for the direct financial harm, in an amount to be determined at trial.

**WHEREFORE**, Plaintiffs request that this Court award the following relief:

- i. A declaratory judgment that Defendants' actions stated herein have constituted and continue to constitute a private nuisance;
- ii. A declaratory judgment that Defendants' actions stated herein have constituted and continue to constitute a public nuisance;
- iii. A declaratory judgment that Defendants' actions stated herein have constituted and continue to constitute nuisance *per se*;
- iv. An injunction ordering to abate the nuisance caused by Defendants' actions stated herein;

- v. An injunction prohibiting Defendants from leasing or operating a public marina and/or a catering facility and/or storing garbage and debris at the 320 Grand Central Avenue, Amityville, New York,
- vi. An award of money damages; and
- vii. Any and all other relief that the Court deems just and proper.

Dated: January 8, 2021  
Commack, New York



---

John N. Cuomo  
Attorney for Plaintiffs  
11 Fern Drive  
Commack, NY 11725  
631-403-0515

**VERIFICATION**

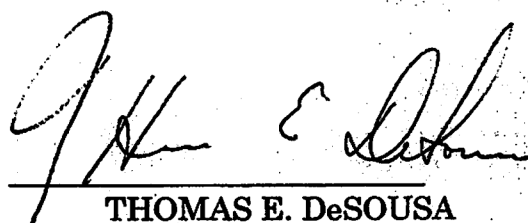
STATE OF NEW YORK )

ss.:

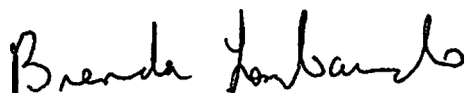
COUNTY OF SUFFOLK )

THOMAS E. DeSOUSA, being duly sworn, deposes and says that deponent is one of the PLAINTIFFS in the within action; that deponent has read the VERIFIED COMPLAINT and knows the contents thereof, and that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters deponent believes them to be true.

BRENDA LOMBARDO  
Notary Public, State of New York  
No. 6719223  
Qualified in Suffolk County  
Commission Expires March 28, 2022

  
THOMAS E. DeSOUSA

Sworn to before me this  
8<sup>th</sup> day of January, 2021



- Notary Public -

## VERIFICATION

STATE OF NEW YORK )

ss.:

COUNTY OF SUFFOLK )

DIANE C. DeSOUSA, being duly sworn, deposes and says that deponent is one of the PLAINTIFFS in the within action; that deponent has read the VERIFIED COMPLAINT and knows the contents thereof, and that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters deponent believes them to be true.

BRENDA LOMBARDO  
Notary Public, State of New York  
No. 011111111  
Qualified in Suffolk County  
Commission Expires March 28, 2022

  
DIANE C. DeSOUSA

Sworn to before me this  
8<sup>th</sup> day of January, 2021



- Notary Public -

INDEX No:

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF SUFFOLK

---

DIANE C. DESOUSA and  
THOMAS E. DESOUSA,

Plaintiffs,

-against-

RICHARD A. CALVAGNO II and  
PATRICK J KARCHER

---

**SUMMONS AND VERIFIED COMPLAINT**

---

John N. Cuomo  
Attorney for Plaintiffs  
11 Fern Drive  
Commack, NY 11725  
631-403-0515

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF SUFFOLK

-----X  
**DIANCE C. DESOUSA AND THOMAS E.  
DESOUSA,**

Index No. 600371/2021

Plaintiffs,

**VERIFIED ANSWER**

-against-

**RICHARD A. CALVAGNO II AND PATRICK J.  
KARCHER,**

Defendants.  
-----X

The Defendant, **RICHARD A. CALVAGNO II**, by and through his attorneys **JASON M. BARBARA & ASSOCIATES, P.C.**, as and for his Verified Answer to the Verified Complaint, alleges as follows:

**FIRST** Defendant denies knowledge or information sufficient to form a belief as to the truth of the allegations set forth in Plaintiffs' Complaint in paragraphs numbered: 1; 2; 6; 14; 15; 19; 6, 7, 23 and 26 insofar as they each set forth or purport to set forth zoning classifications; and 25, 26, 32, 33, 35, 36, and 62 insofar as they each set forth or purport to set forth existing law, rules, regulations and ordinances of local law and controlling municipalities, but denies Defendants' violation of any such rules.

**SECOND** Defendant denies the truth of the allegations set forth in Plaintiffs' Complaint in paragraphs numbered: 4; 9; 11; 12; 13; 16; 17; 18; 20; 22; 27; 29; 30 insofar as it purports to describe two small gatherings hosted by Defendant and misrepresented by Plaintiff as "events"; 31; 32, 33, 34 and 35 as above additionally qualified and to the extent that paragraphs numbered 33-36 suggest the Defendants guilty of any such conduct; 37-43 inclusive; 45-52 inclusive; 54-62 inclusive; 62-65 inclusive; and 67-71 inclusive.

**THIRD** With respect to Plaintiffs' Complaint paragraph 4, forming the underlying basis upon which each and every cause of action is grounded, your Defendant notes that the Plaintiffs have carelessly alleged that Plaintiffs are the owners of Defendants' property thus rendering the Plaintiff without legal recourse against Defendants on any cause of action relating to the real property.

**FOURTH** With respect to Plaintiffs' Complaint, paragraph 21 Defendant denies the allegation that Defendant rented the boat slip behind their home.

**FIFTH** With respect to Plaintiffs' Complaint, paragraph 24 Defendant denies the allegations set forth therein except and insofar as they address Plaintiffs' "walks," and with respect to Plaintiff's conduct or alleged reasons therefor, denies knowledge or information sufficient to form a belief.

**SIXTH** With respect to Plaintiffs' Complaint, paragraphs numbered: 44; 53; 61; and 66, Defendant repeats each denial or denial made upon information and belief as previously set forth in this Answer.

**AS AND FOR A FIRST COUNTERCLAIM**

**SEVENTH** Plaintiffs herein have:

- a. perverted the legal process,
- b. made constant but false complaints to the Defendant, police and other local officials complaining of the acts set forth in its complaint; and
- c. have been told by local police and others that the Defendant is not guilty of any infractions nor violated any local laws, ordinances or rules and that the Plaintiffs have no remedy at law.

**EIGHTH** That notwithstanding the above, the Plaintiffs nonetheless and maliciously elected to commence this litigation against Defendants with irresponsible haste. Indeed, the Plaintiffs' Complaint:

- a. Erroneously avers in paragraph 4 that the Plaintiffs are the owners of the property upon which subject matter jurisdiction, personal jurisdiction and all causes of action are grounded, thus rendering their Complaint procedurally defective as a matter of law;
- b. Postulates in paragraphs 34 and other paragraphs as to "particular concerns" and the potential for infestation that "may" (but notably that has not) resulted from conditions that such paragraphs do not even accuse the Defendants of having created; and
- c. Concedes in paragraph 42 that he confronted the Defendant but conceals from this Court the fact that the police have been called and told the Plaintiffs that Defendant is NOT guilty of the conduct herein falsely complained of

**NINTH** By reason of the above, the Plaintiffs are guilty of having abused the legal process and abused process, by commencing this defective and meritless action alleging Defendant's violation of local laws and ordinances when in fact the police have investigated and determined unfounded the complaints Plaintiffs maliciously regurgitate herein. As a result of such conduct, the Defendant is entitled to damages in a sum to be determined by this Court including treble damages.

**AS AND FOR A SECOND COUNTER CLAIM**

**TENTH** Defendants repeat and reiterate each and every denial, denial made upon information and belief, and every other allegation set forth above as same were more fully set forth at length herein.

**ELEVENTH** That the Defendants purchased the subject residence (which the Plaintiff falsely and irresponsibly identifies as its own ) at 320 Grand Avenue in or about 2018 in their joint names.



**TWELFTH** That the Defendant PATRICK J. KARCHER, does not and in fact has never, occupied the subject residence.

**THIRTEENTH** Rather, the Defendant RICHARD A. CALVAGNO II has always occupied the home with his same sex partner.

**FOURTEENTH** That the Plaintiffs are morally offended by Defendant CALVAGNO's homosexuality.

**FIFTEENTH** That as a result of Plaintiffs' prejudice, the Plaintiffs have entered upon a deliberate course of conduct deliberately designed to harass and annoy the Defendants and express Plaintiffs' prejudice against Defendants with the malice aforethought.

**SIXTEENTH** Indeed, and in the "requests" Plaintiffs' refer to in paragraph 42 of his Complaint and others, the Plaintiff has verbally abused and attacked the Defendant slandering him with offensive slurs like "faggot," "homo" and other intolerant affronts too offensive to repeat herein.

**SEVENTEENTH** Plaintiff has also approached other neighbors, similarly slandering the Defendant with Plaintiff's prejudicial slurs, to enlist the support of neighbors.

**EIGHTEENTH** Notably, no neighbors have supported Plaintiffs' efforts and no neighbors have joined in the Plaintiffs' underlying action.

**NINETEENTH** That Plaintiffs' Complaint is borne of their own hate filled prejudice and discrimination and forms the basis of intentional torts and other offenses arising from their prejudices, hate and discrimination and violation of all laws protecting against such conduct, as a result of which the Defendants ask this Court to punish and sanction Plaintiffs with an award of damages in a sum to be determined by this Court including but not limited to treble damages.

**AS AND FOR A THIRD COUNTERCLAIM**

**TWENTIETH** Defendants repeat and reiterate each and every denial, denial made upon information and belief, and every other allegation set forth above as same were more fully set forth at length herein.

**TWENTY-FIRST** That by reason of the above Plaintiffs are guilty of malicious prosecution, as a result of which the Defendants seek damages in a sum to be determined by this Court.

**AS AND FOR A FOURTH COUNTERCLAIM**

**TWENTY-SECOND** Defendants repeat and reiterate each and every denial, denial made upon information and belief, and every other allegation set forth above as same were more fully set forth at length herein.

**TWENTY-THIRD** That by reason of the above and in consideration of the Plaintiffs' unsuccessful efforts to enlist the support of other neighbors who refused to participate in Plaintiffs' action combined with Plaintiff's nonetheless prosecution of a cause of action for public nuisance without injury to or the support of the public, the Plaintiffs are themselves guilty of private nuisance.

**AS AND FOR A FIFTH COUNTERCLAIM**

**TWENTY-FOURTH** Defendants repeat and reiterate each and every denial, denial made upon information and belief, and every other allegation set forth above as same were more fully set forth at length herein.

**TWENTY-FIFTH** Plaintiff(s) has harassed and menaced the Defendant, followed him to his place of employment where he screamed obscenities meant to menace, shame and intimidate the Defendant, and to also threaten his employment.

**TWENTY-SIXTH** Plaintiff's harassment, annoying and menacing behavior also includes Plaintiff waiting outside Defendant's home in the morning, shouting obscenities and threats as Defendant exits his home and leaves for work, and or parking his car in front of Defendant's driveway to block Defendant from leaving for work.

**TWENTY-SEVENTH** That by reason of the above the Plaintiff is guilty of harassment, menacing, intentional infliction of emotional distress and similarly related intentional torts and demands judgment in a sum to be determined by this Court.

**AS AND FOR A FIRST AFFIRMATIVE DEFENSE**

**TWENTY-EIGHTH** Plaintiffs' Complaint identifies itself as the owner of both parcels of real property and as such is procedurally defective, fails for a want of jurisdiction, and is defective and void *ab initio*, making false, confusing and misleading statements of essential and material facts.

**AS AND FOR A SECOND AFFIRMATIVE DEFENSE**

**TWENTY-NINTH** Plaintiff's Complaint and the causes of action complained of therein fail or to set forth with requisite specificity the conduct complained of and constituting the alleged offense.

**AS AND FOR A THIRD AFFIRMATIVE DEFENSE**

**THIRTIETH** Plaintiff's Complaint purporting to set for a cause of action for public nuisance may not be maintained, as a public nuisance requires the complained of conduct to have affected a group of people.

**THIRTY-FIRST** Plaintiffs' Complaint is maintained in Plaintiffs' individual names and interest, specifically referring to "I," "my," "we" or "our," use and enjoyment of "our home" (§§15, 19 and 21, by way of example but not limitation.)

**THIRTY-SECOND** More specifically, in their Second Cause of Action for Public Nuisance, Plaintiff complains in paragraphs 57 and 59 of specific damages allegedly sustained by Plaintiffs only, and as such a cause of action for public nuisance is insufficiently pled may not be maintained.

**AS AND FOR A FOURTH AFFIRMATIVE DEFENSE**

**THIRTY-THIRD** Plaintiff's Complaint purporting to set forth a cause of action for private nuisance may not be maintained, as a cause of action for private nuisance must allege and demonstrate that the conduct complained of would be considered annoying or upsetting to any reasonable person and the Plaintiff's Complaint fails to include such allegations or make such a showing.

**THIRTY-FOURTH** In fact, the Plaintiff has called the county Code Enforcement to Defendant's home on more than one occasion and the Code Enforcement have reported to Plaintiff that Defendant's conduct is not unreasonable, does not violate any controlling law and that Defendant has not impermissibly used his property.

**AS AND FOR A FIFTH AFFIRMATIVE DEFENSE**

**THIRTY-FIFTH** A defense is grounded upon the Defendant's legal use and ownership of the real property.

**AS AND FOR A SIXTH AFFIRMATIVE DEFENSE**

**THIRTY-SIXTH** A defense is grounded upon the Defendant's vehicles factory installed exhaust and remote starter options satisfying all federal and state regulations relating thereto and affirmatively establishing the Plaintiff's complaints to be void of merit, petty, harassing in nature and deliberately aimed at an otherwise innocent Defendant who purchased and operates his vehicle in accordance with all controlling laws, rules and regulations.

**AS AND FOR A SEVENTH AFFIRMATIVE DEFENSE**

**THIRTY-SEVENTH** A defense is grounded upon a failure of “substantial” injury.

**AS AND FOR AN EIGHTH AFFIRMATIVE DEFENSE**

**THIRTY-EIGHTH** Plaintiffs are barred from recovery of the damages sought due to their contributory and culpable conduct.

**AS AND FOR A NINTH AFFIRMATIVE DEFENSE**

**THIRTY-NINTH** Plaintiffs lack standing.

**WHEREFORE**, Defendant demands judgment on his counterclaims for actual, compensatory and punitive damages including treble damages, in a sum to be determined by this Court and accruing through the date of judgment on each such cause of action and dismissing the Plaintiffs’ complaint and denying Plaintiff the relief requested thereunder, together with such other and further relief to be awarded to Defendant as this Court may deem appropriate, and dismissing the Plaintiff’s complaint and denying Plaintiff the relief requested thereunder, together with such other and further relief to be awarded to Defendant as this Court may deem appropriate.

Dated: New Hyde Park, New York  
January 26, 2020

Yours, etc.,



**JASON M. BARBARA & ASSOCIATES, P.C.**

**NABEELA HAMID, ESQ.**

*Attorney for the Defendant, Richard Calvagno II*

3 Dakota Drive, Suite 300

New Hyde Park, NY 11042

T: (516) 775-5557

F: (516) 775-5558

Email: [nhamid@longislandlitigators.com](mailto:nhamid@longislandlitigators.com)

**TO: John N. Cuomo**  
***Attorney for Plaintiffs***  
**11 Fern Drive**  
**Commack, NY 11725**

## 10

Commission Expires August 19, 2023  
Qualified in Queens County  
No. 028686227  
Notary Public, State of New York  
MINDY J. BETTIA



SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF SUFFOLKDIANE C. DESOUSA and THOMAS E.  
DESOUSA,

Plaintiffs,

-against-

RICHARD A. CALVAGNO II and PATRICK J.  
KARCHER,

Defendants.

Index No. 600371/2021

**REPLY TO  
COUNTER-CLAIMS**

Plaintiffs Diane C. DeSousa and Thomas E. DeSousa as and for their answers to the Counter-Claims of Richard A. Calvagno II contained in his Verified Answer allege as follows:

**ANSWERING THE FIRST COUNTERCLAIM**

1. Deny each and every allegation contained in those paragraphs designated as "SEVENTH" and "NINTH".
2. Deny each and every allegation contained in that paragraph designated as "EIGHTH" except admits that while Verified Complaint may contain what amounts to *de minimis*, typographical errors, they can and will be corrected with an amended document.

**ANSWERING THE SECOND COUNTERCLAIM**

3. In response to that paragraph designated as "TENTH", plaintiffs repeat and reallege each and every answer as if each were set forth herein at length.

4. Deny each and every allegation contained in those paragraphs designated as "FOURTEENTH", "FIFTEENTH", "SIXTEENTH", "EIGHTEENTH" and "NINETEENTH".
5. Deny each and every allegation contained in the paragraph designated as "ELEVENTH" except admit that the records of the clerk of Suffolk County show that the Defendants are the fee owners of the real property located at 320 Grand Central Avenue, Amityville, NY.
6. Deny having knowledge sufficient to form a belief as to the truth of those allegations contained in those paragraphs designated as "TWELFTH" and "THIRTEENTH".

ANSWERING THE THIRD COUNTERCLAIM

7. In response to that paragraph designated as "TWENTIETH", plaintiffs repeat and reallege each and every answer as if each were set forth herein at length.
8. Denies each and every allegation contained in that paragraph designated as "TWENTY-FIRST".

ANSWERING THE FOURTH COUNTERCLAIM

9. In response to that paragraph designated as "TWENTY-SECOND", plaintiffs repeat and reallege each and every answer as if each were set forth herein at length.
10. Denies each and every allegation contained in that paragraph designated as "TWENTY-THIRD".

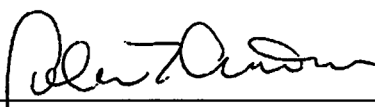
ANSWERING THE FIFTH COUNTERCLAIM

11. In response to that paragraph designated as "TWENTY-FOURTH", plaintiffs repeat and reallege each and every answer as if each were set forth herein at length.

12. Denies each and every allegation contained in that paragraph designated as "TWENTY-FIFTH".

**WHEREFORE**, plaintiffs., demand judgment dismissing the counterclaims of Richard A. Calvagno II together with the costs and disbursements of this action.

Dated: February 12, 2021  
Commack, NY

  
\_\_\_\_\_  
John N. Cuomo

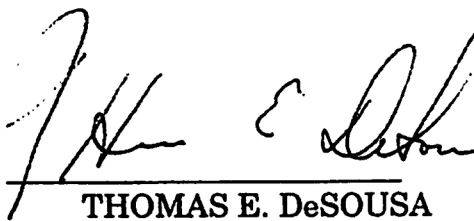
STATE OF NEW YORK )

SS.:

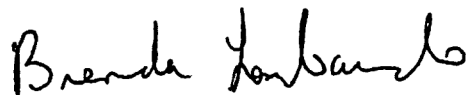
COUNTY OF SUFFOLK )

THOMAS E. DeSOUSA, being duly sworn, deposes and says that deponent is one of the PLAINTIFFS in the within action; that deponent has read the REPLY TO COUNTERCLAIMS and knows the contents thereof, and that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters deponent believes them to be true.

THOMAS E. DeSOUSA  
Notary Public for the State of New York  
Commission Expires March 20, 2022

  
THOMAS E. DeSOUSA

Sworn to before me this  
12th day of February, 2021



- Notary Public -

STATE OF NEW YORK )

SS.:

COUNTY OF SUFFOLK )

DIANE C. DeSOUSA, being duly sworn, deposes and says that deponent is one of the PLAINTIFFS in the within action; that deponent has read the Reply to Counterclaims and knows the contents thereof, and that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters deponent believes them to be true.

  
DIANE C. DeSOUSA

BRENDA L. LAMARCA  
Notary Public for the State of New York  
Commission Expires March 20, 2022  
Sworn to before me this day  
12th day of February, 2021

  
- Notary Public -

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF SUFFOLK.....X  
DIANE C. DESOUSA and THOMAS E. DESOUSA,

Index No.: 600371/2021

Plaintiffs,

DEFENDANT'S  
VERIFIED ANSWER

-against-

RICHARD A. CALVAGNO II and PATRICK J.  
KARCHER,

Defendants.

.....X

The defendant, PATRICK J. KARCHER (hereinafter referred to as the "Defendant") answering the complaint of DIANE C. DESOUSA and THOMAS E. DESOUSA (hereinafter collectively referred to as the "Plaintiff"), by its attorneys, Warshaw Burstein, LLP, respectfully alleges upon information and belief all of the answers to the allegations contained in the complaint of Plaintiff (hereinafter referred to as the "Complaint") as follows:

1. Denies knowledge or information sufficient to form a belief as to the truth of the allegations contained in paragraph numbers 1, 2, 5, 6, 7, 8, 9, 10, 12, 15, 19, 23, 25, 28, 35, 36, 39 and 42 of the Complaint.

2. Denies the truth of the allegations contained in paragraph numbers 11, 13, 14, 16, 17, 18, 20, 21 and 22 of the Complaint as they relate to the Defendant and denies knowledge or information sufficient to form a belief as to the truth of the allegations as they pertain to defendant RICHARD A. CALVAGNO II.

3. Denies the truth of the allegations contained in paragraph numbers 3, 4, 24, 26, 27, 29, 30, 31, 32, 33, 34, 37, 38, 40, 41, 43, 45, 46, 47, 48, 49, 50, 51, 52, 54, 55, 56, 57, 58, 59, 60, 62, 63, 64, 65, 67, 68, 69, 70 and 71 of the Complaint.

4. Concerning paragraphs 44, 53, 61 and 66, Defendant repeats and realleges the responses at fully set forth therein.

**AFFIRMATIVE DEFENSES**

6. Defendant hereby sets forth its separate and distinct affirmative defenses to the claims set forth in the Complaint. By listing any matter as an affirmative defense, Defendant does not assume the burden of proving any matter upon which Plaintiff's bear the burden of proof under applicable law.

**AS AND FOR A FIRST AFFIRMATIVE DEFENSE**

7. The Complaint fails to state a cause of action against Defendant. Defendant does not reside at the subject premises.

**AS AND FOR A SECOND AFFIRMATIVE DEFENSE**

8. Defendants allege, upon information and belief, that whatever injuries and/or damages were sustained by Plaintiff at the time and place alleged in the Complaint were in whole or in part the result of the actions of Plaintiff.

**AS AND FOR A THIRD AFFIRMATIVE DEFENSE**

9. Defendants alleges, upon information and belief, that any damages which may have been sustained by Plaintiff were contributed to in whole or in part by the actions of third parties not under the control of the answering Defendant. Defendant does not reside at the subject premises.

**AS AND FOR A FOURTH AFFIRMATIVE DEFENSE**

10. The action is barred by the doctrine of waiver, estoppel, laches and unclean hands.

**ADDITIONAL AFFIRMATIVE DEFENSES**

11. Defendant hereby gives notice that they intend to rely upon other and further defenses as may become available or apparent during the discovery proceedings in the action and hereby reserve the right to amend its answer to the Complaint and to assert any other defense or claim by appropriate motion.

**WHEREFORE**, Defendants pray that judgment be entered as follows:

(1) That all claims brought against Defendant, by Plaintiff herein, be dismissed with prejudice; and

(2) That Defendant be awarded the costs and disbursements of this action, including reasonable attorney's fees, together with such other and further relief as this Court shall deem just and proper.

Dated: New York, New York  
March 4, 2021

Respectfully Submitted,

WARSHAW BURSTEIN, LLP  
*Attorneys for Defendant*

By: Marc Lavaia

Marc A. Lavaia, Esq.  
575 Lexington Avenue, 7<sup>th</sup> Floor  
New York, NY 10022  
Tel: (212) 984-7740  
Email: mlavaia@wbny.com



To:

JOHN N. CUOMO, ESQ.  
*Attorneys for Plaintiff*  
11 Fern Drive  
Commack, NY 11725  
Tel: 212-349-6400

VERIFICATION

STATE OF NEW YORK }

}

ss:

COUNTY OF NEW YORK }

Patrick J. Karcher, being duly sworn, deposes and says I am a principal of the Defendant in this action. I have read the foregoing Verified Answer to the Verified Complaint and know the contents thereof; and same is true to my knowledge except as to the matters therein stated to be alleged upon information and belief and as to those matters, I believe them to be true. The grounds of my belief as to all the matters not stated upon my own knowledge are as follows: the books and records of the Defendant.

  
PATRICK J. KARCHER

Sworn to before me this  
5<sup>th</sup> day of March, 2021

  
NOTARY PUBLIC

MAXWELL JON RUEN  
Notary Public, State of New York  
No. 0281088000  
Qualified in Nassau County  
Commission Expires July 20, 2025